

BROWN, ET AL v. STATE OF CALIFORNIA

23CV46681

PETITION FOR ORDER PERMITTING LATE CLAIM

This is a special proceeding pursuant to Govt. Code §946.6 for leave to submit a late governmental claim for an incident involving a runaway golf cart.

The Governmental Claim Act's purpose is to provide the public entity sufficient information to enable it to (1) investigate/settle claims without the expense of litigation, (2) plan for potential fiscal liabilities, and (3) avoid similar liabilities in the future. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738; *E.M. v. LA Unified School Dist.* (2011) 194 Cal.App.4th 736, 748; *Westcon Construction Corp. v. County of Sacramento* (2007) 152 Cal.App.4th 183, 200.)+ As such, no suit for money or damages may be maintained against a governmental entity unless a formal claim has been presented to such entity within six months of accrual of the cause of action. (Govt. Code §911.2; *Munoz v. State of Calif.* (1995) 33 Cal.App.4th 1767, 1776.) If the claimant fails to file within six months, he or she may apply in writing to the public entity for permission to file a late claim. (Govt. Code §911.4; see *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648, 656.) If the public entity denies the application to file a late claim, the claimant may petition the court for relief within 6 months thereafter. (Govt. Code §946.6; *Coble v. Ventura County Health Care Agency* (2021) 73 Cal.App.5th 417, 425.) A court may relieve a petitioner from the government claims requirements if the court finds that the claimant's failure was the result of mistake, inadvertence, surprise or excusable neglect, and that the public entity will not be prejudiced; or if the claimant was a minor throughout the claims-filing period. As a general rule, where the other timing requirements have otherwise been satisfied, and reasonable grounds stated, doubts are resolved in favor of the petitioners.

The hearing on this petition must be continued. The Court file contains only the opening petition and petitioners' reply, but not the State's opposition to the petition, which was rejected in an attempted e-filing for lack of a proper signature. The State is ordered to effect the filing of their opposition papers forthwith. Hearing continued to 05/26/23 at 9:00 a.m.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further order will be required at this time.